

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX****X**

BRIAN TUCKER

Plaintiff,

-against-CITY OF NEW YORK, POLICE OFFICER
JOSEPH VINCENT, BADGE NO. 23708,
IN HIS INDIVIDUAL AND OFFICIAL CAPACITY,
JOHN DOE NO. 1, IN HIS INDIVIDUAL, AND OFFICIAL
CAPACITY.

Defendants.

**ECF
VERIFIED COMPLAINT****Index No.****Plaintiff Designates Bronx
County as the Place of Trial.****JURY TRIAL DEMANDED****X**

Plaintiff by his attorney, The Law office of Welton K. Wisham, alleges upon information, and belief, the following against Defendants, The City of New York, Police Officer Joseph Vincent, and officer John Doe No 2, believed to be assigned to the, 6th and 94th police precincts respectively, The City of New York and Brooklyn, New York.

PRELIMINARY STATEMENT

1. This action arises out of Defendants' role in the creation of their special duty to provide police protection to Plaintiff Brian Tucker from a known threat of physical harm by a passenger on board the L subway train, and that the New York City Police Department breach their special relationship duty to protect Mr. Tucker which caused Plaintiff to suffer severe physical and emotional injuries.
2. That on April 12, 2017, at approximately 2; 50 am, Mr. Tucker was performing his duties as a New York City Transit Authority as a Supervisor charged with overseeing the operation of the motorman and the conductor on board the No. L train which was traveling north bound from Lorimer Street, Brooklyn, New York towards the Bedford Ave. Station also located in Brooklyn, New York.

3. That while performing his supervisory duties on board the L train bearing No. 8376, Mr. Tucker observed a man urinating between the subway cars as the train was entering the Bedford Ave. Station.
4. That when the train entered the Bedford Ave. Station, Plaintiff observed two male New York City transit officers standing on the platform.
5. That Mr. Tucker approached the two officers and informed them that he had observed a man who appeared to have been homeless urinating between the train cars.
6. Plaintiff was partially standing inside the doorway of the train and the platform during his conversation with the two police officers.
7. That the officers came on board the train and removed the passenger that Mr. Tucker observed urinating on the train. Joseph Vincent, Badged No. 23708, was one of the officers who removed the man urinating from the train.
8. That as the two officers were in the process of removing the man from the train, a male passenger on the train who saw the police removing the homeless man, suddenly got up out of his seat and stood directly between Mr. Tucker and the two officers.
9. The unidentified man then began to yell aloud in front of the police officers “ y’all don’t have nothing better to do than to harass somebody urinating on the train?”
10. The unknown man then said out loud to Mr. Tucker and in front of the police officers, “Why you snitch on him, why you snitch on him”? When the train leaves, I’m going to fuck you up!”
11. Mr. Tucker was frightened by the direct threat to his life made by this passenger in front of the two police officers,
12. That the threat was made as the man stood directly between the Plaintiff and the two police officers.

13. That the officers saw the unidentified man who made the threat directed towards the Plaintiff.
14. That the two police officers clearly heard the treat made to Mr. Tucker on board the L train.
15. That Mr. Tucker looked directly at the officers and communicated to them through his body language of his fears that the man would carry out his treat to “fuck him up once the train leaves the station.
16. Upon hearing the threat directed at the Plaintiff, the two police officers grabbed the man by his shoulders and took him off the train.
17. That the two police officers proceeded to remove the man who made the threat from the train.
18. That Plaintiff Tucker was relieved that the officers were made aware of the threat and removed the man from the train allowing Plaintiff to reasonably believe that the threat had been removed.
19. That Mr. Tucker thanked the officers for removing the man off the train who had threatened to physically assault him once the train left the station ”
20. That Mr. Tucker began to relax and placed his mind at ease believing that the officers had intervened to prevent the man from causing him physical harm.
21. That the train doors were closed after the straphanger was removed from the train by the police officers, and Mr. Tucker resumed his duties as a New York City Transit supervisor.
22. Mr. Tucker, as a supervisor of the Metropolitan Transit Authority, did not feel the need to call the MTA or the police regarding the threats made against him by the stranger on board the train because of the fact that the Defendant officers had in fact intervened on behalf of the Plaintiff.

23. That the Plaintiff was justified in his reliance of the actions of the police officers in removing the man who had made the threat from the train which caused Mr. Tucker to feel as though the police had indeed terminated the immediate threat to the his life.

24. That once the train doors closed and the train began to continue its route towards the First Avenue station in New York City, the same man who had threatened to “ fuck” [Mr. Tucker] up for “snitching to the police” suddenly reappeared from another car door on the train.

25. That the unidentified man immediately charged Mr. Tucker and shouted out loud” what now, what now? I’m gonna fuck you up! I told you I was gonna fuck you up!

26. That this unidentified man tackled the Plaintiff to the floor of the train and started to repeatedly punch, kick and choke Mr. Tucker in front of passenger on board the L train.

27. Plaintiff was helpless as the assailant continued to beat him throughout his entire body, face, kidneys and ribs.

28. The assailant grabbed Mr. Tucker around his neck and pushed him repeatedly against the train doors.

29. That Mr. Tucker was severely beaten by the straphanger.

30. Plaintiff was knocked around by the assailant and thrown into a pole and thrown around by the assailant on board the L train all the while shouting to the Plaintiff, I’m gonna kill you!.

31. Mr. Tucker was beaten by the straphanger for approximately four to five minutes.

32. That other passengers witnessed the events and videotape the man beating the Plaintiff yet none of them intervened.

33. That the assailant, upon exiting the train yelled at Mr. Tucker as he lay helpless on the ground that “I will ride trains [again] till I find you again”!

34. The man who attacked Mr. Tucker, then made a gesture directed at the Plaintiff as though he was holding a gun in his hands towards toward the Plaintiff.

35. Upon entering the First Ave. station the assailant ran to the other end of the car and jumped off the train by jumping between the train cars and the metal springs, and ran out the station.

36. The assailant remains at large to this day.

37. The conductor on the train, Mr. K. Henry Id. No. 385057, who witnessed the aforementioned events, called MTA Rail Control who then contacted the police.

38. The assailant ran off the train once the train stopped at the First Ave Station.

39. Once the train arrived at the First Ave. station, Mr. Tucker contacted his employer, The New Metropolitan Transit Authority, York City Transit and informed them of the incident.

40. That Plaintiff was informed that members of the New York City Police Department would meet him at the Eighth Ave station, which was the next stop from First Avenue.

41. Police officer Scarlos and Detective Mortimer of the Night Watch Unit met with Mr. Tucker when the train arrived at the First Ave. station.

42. That the New York City Police Commanders of Transit District 4, and Transit District 33 were both notified the assault on the transit worker, Plaintiff Brian Tucker through the reports prepared by the New York City Police Department.

43. The Complaint taken by the New York City Police Department was originally recorded under Complaint No. 2017-094-01237 but was changed by the NYPD to Complaint number 2017-913-2588 because the first offense occurred in Bedford Ave and the "Rule of Continuous Event was upheld by the New York City Police Department.

44. That the train supervisor, Brian Tucker, was taken by ambulance to the Lennox Hill Greenwich Hospital by Emergency Medical Services.

45. Plaintiff suffered severe swelling and bruises to his face.
46. Mr. Tucker also complained of severe neck pain and severe pain in his lower back.
47. Plaintiff was diagnosed with having a herniated disc in his vertebrae in his neck and two herniated discs in his lower back.
48. That Plaintiff was caused to undergo physical therapy approximately three times a week for eight weeks due to the extent of his injuries.
49. Mr. Tucker suffered emotional trauma and emotional pain and suffering from the incident on board the subway train which caused the Plaintiff to seek professional treatment.
50. That the Plaintiff was caused to undergo psychological treatment once a week for approximately twelve weeks.
51. Mr. Tucker was diagnosed with having PTSD (Post Traumatic Stress Syndrome) as a direct result on the April 12, 2017, incident.
52. That Plaintiff was unable to work from April 13, 2017 until his return on July 26, 2017, due to the injuries he suffered from the event described herein.
53. That the actions taken by the New York City Police officers on board the L train in removing the man who had directly threaten the Plaintiff in front of the officers, lulled the Plaintiff into a false sense of security and thereby placed the Plaintiff in a worse position than he would have been in had the police officers never assumed the duty.

JURISDICTION

54. This Court has personal jurisdiction over the defendants because the defendants transacted business within the State of New York within the meaning of CPLR Section 302(a) (1), and causing injury to the Plaintiff within the State of New York.

VENUE

55. The Plaintiff selects Bronx County as the venue for which this action is commence. Venue is predicated on Plaintiff's residence in Bronx, New York, as set forth under McKinney's Consolidated Laws of New York Civil Practice Law and Rules Section 503(a).

PARTIES

56. Plaintiff Brian Tucker at all times mention herein is a resident of the City of the Bronx, State of New York.

57. That Mr. Tucker has been employed by the New York City Transit Authority approximately twenty six years.

58. That on April 12, 2017, Plaintiff was working for the Metropolitan Transit Authority as a train service supervisor who was placed in charge of training train operators, conductors and tower operators to ensure that the subway trains are operating and functioning effectively.

59. Defendants Joseph Vincent and John Doe No 1, are believed to be members of the New York City Police Department who were believed to be assigned to Transit District 33 located in Brooklyn, New York, at the time of the incident who were duly appointed, and acting as employees of the New York City Police Department.

60. That the defendant police officers named herein, are current members of the New York City Police Department assigned to Transit District 33 who were both assign to patrol the L line on the morning of April 12, 2017.

61. That the individual police officers involved in the incident underlying this lawsuit were at all times mentioned in this complaint, agents, servants, and employees, acting within the scope of their employment by Defendant City of New York, and were duly appointed police officers in the New York City Police Department acting within their individual, and official capacity, and

under color of law, that is under color of law of the Constitution, statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

62. That the Defendant, City of New York, is a municipal corporation within the State of New York. Pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department as a constituent department or agency.

63. That at all times relevant hereto, the City of New York employed the defendant Police Officers involved in this incident.

64. That in 1995, the NYC Transit Police merged with the New York City Police Department, consolidating functions and establishing a more efficient and better coordinated police agency.

65. The Transit Police are responsible for policing the city's subway system which is an integral part of the NYPD's mission to enhance New Yorkers' quality of life and to protect the lives and property of all its residents, workers, and visitors.

NOTICE OF CLAIM

66. Plaintiff, in furtherance of his New York State causes of action, filed timely notice of claim against the named Defendants and the City of New York in compliance with General Municipal Law Section 50 H.

67. More than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

68. This action has been commenced within one year and ninety days from the date of Plaintiff's injuries.

FIRST CAUSE OF ACTION
AGAINST THE CITY OF NEW YORK FOR NEGLIGENCE FOR THE DEFENDANT
OFFICERS' FAILURE TO PROVIDE POLICE PROTECTION UNDER THE SPECIAL
RELATIONSHIP DOCTRINE.

69. That plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 68", with the same force and effect as though more fully set forth at length herein.

70. That at all time herein mentioned and upon information, and belief, the Defendant Police Officers Joseph Vincent and John Doe No.1, were, and still are, members of the New York City Police Department's Transit Police 33rd precinct located in Brooklyn York.

71. That at all time herein mentioned the defendant, City of New York, maintained, operated, and controlled the Police Department within the City of New York.

72. That at all time hereinafter mentioned the defendant, City of New York, employed transit police officers in its police force.

73. That at all times hereinafter mentioned the Defendant police officers employed by the defendant City of New York, were servants, agents, and/or employees of the defendant City of New York, and were acting within the scope of their employment on April 12, 2017.

74. That on or about April 12, 2017, at approximately 2:50 am. Plaintiff was on board the L train supervising and overseeing the operations of the Metropolitan Transit Authority motorman and train operator.

75. Plaintiff was informed by other passengers that there was a man on the train who appeared to be homeless that had his penis out and was urinating outside the doors of the train.

76. That when the train arrived at the Bedford Ave. station he observed two transit police officers standing on the platform.

77. That the Plaintiff informed the Defendant officers that a man was urinating on the train.

78. That another man on the train saw Plaintiff complaining to the officers that a straphanger was urinating on the train.

79. That the unidentified man threatened Plaintiff in front of the two officers by stating “Why you snitch on him, why you snitch on him? When the train leaves, I’m going to fuck you up!”

80. The two officers were standing directly in front to the man and the Plaintiff.

81. Plaintiff got the attention of the officers who heard the threat made by the unidentified man on the train by using body language directed at the officers which showed Plaintiff concern of an imminent danger to his life.

82. The officers were aware of the direct threat to the Plaintiff and took action to remove the threat from the train by removing the man who had made the threat.

83. That the Plaintiff was thankful for the officer’s actions and felt a sense of relief that the threat made of Plaintiff’s life had been removed.

84. That Mr. Tucker was caused by the actions of the Defendant officers to have been lulled into a sense of security believing that the officers had taken the man off the train.

85. That Plaintiff’s sense of security was short lived because soon after the train left the Bedford Ave. station, the same man who had yelled out loud in front of the Plaintiff and the two officers “Why you snitch, why you snitch ,I’m going to fuck you up once the train leaves”, suddenly reappeared on the train and starting beating the Plaintiff over his face and body.

86. That Mr. Tucker was severely beaten, punched and kicked by the assailant on board the L train.

87. That the City of New York is liable to the Plaintiff because the actions of the Defendant police officers created a special duty to protect the Plaintiff against the foreseeable harm caused by the unidentified assailant.

88. That the Defendants created a special relationship between themselves and the Plaintiff.

89. That the Defendant New York City Police officers created a special relationship between themselves and the Plaintiff by 1) an assumption by the municipality, through their implied promise and actions of an affirmative duty to act on behalf of the injured party, Brian Tucker, 2) the Defendant officers, as agent's of the municipality, possessed knowledge that their inaction could lead to harm, 3) there existed some form of direct contact between the Defendant police officers acting as the municipality's agent and the injured party, named the Plaintiff, Brian Tucker, 4) there was justifiable reliance by Plaintiff Tucker on the municipality's affirmative undertaking.

90. That the Defendant officers' voluntary undertaking to protect Mr. Tucker from a known harm was performed in a negligent and perfunctory manner.

91. That the negligence of the Defendants and their breach of the special relationship between themselves and the Plaintiff, served as the proximate cause of the said injuries sustained by Mr. Tucker.

92. That the active and passive conduct which formed such negligence and breach of the special relationship was performed by the individual defendants as police officers of the City of New York acting in concert with one another were fully authorized to engage in conduct that would have prevented the harm caused to the Plaintiff.

93. That the conduct of the Defendants which is more fully describe in the foregoing paragraphs of the Complaint, was performed, and effected under color of their official duties and under

color and pretense of law, to wit, under color of statutes, ordinances, regulations, customs and uses of the State of New York and City of New York.

94. That the conduct of the individuals Defendants was performed in the course of their employment by and on behalf of the City of New York as New York City Police officers.

95. That by the Defendants' said conduct, acts failure to act, Defendants caused plaintiff to suffer serious personal injuries, emotional distress and pain and suffering, and permanent emotional disability.

96. The acts and conduct of the individual Defendants complained of herein, constitutes gross negligence and an outrageous disregard for the safety and welfare Brian Tucker.

97. That Brian Tucker reasonably and justifiably relied on the individuals Defendants actions of removing the man on the train who had threatened the Plaintiff.

98. That the Defendants was aware of the threat on Plaintiff's life.

99. That the Defendant officers overhead and witnessed the man on the train who had directly threatened Mr. Tucker with serious bodily harm.

100. That the Defendant officers breached their duty to Plaintiff which was created by the by the special relationship the Defendant officers formed with the Plaintiff.

101. That Plaintiff relied on the Defendant police officers reasonable assurances of removing the threat that Mr. Tucker had the doors of the train closed and continued to conduct his normal course of business.

102. Mr. Tucker was therefore lulled into a false sense of security which cause Plaintiff to continue his normal operations without calling for assistance for the police over the radio provided by the New York City Transit Authority.

103. That the false sense of security rendered by the individual Defendants placed the Plaintiff in a worse position than he would have been in had the police officers never assumed the duty.

104. That as a direct result thereof, the City of New York is liable to the Plaintiff due to the negligence of the Defendants based on the Special Relationship Defendants Vincent and John Doe No. 1 created and subsequently breached by allowing Plaintiff to come under attack by a passenger on board a New York City Subway train.

105. That Plaintiff Tucker has been greatly damaged thereof.

SECOND CAUSE OF ACTION
AGAINST THE CITY OF NEW YORK UNDER 42 U.S.C. SECTION 1983, FOR
FAILURE TO TRAIN, SUPERVISE OR DISCIPLINE DEFENDANTS POLICE
OFFICERS JOSEPH VINCENCT AND JOHN DOE NO. 1

106. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through 105", with the same force and effect as though more fully set forth at length herein.

107. That at all times herein mentioned the individual Defendants of the New York City Police Department involved in the incident complained of herein, were negligently hired, trained, supervised, disciplined, and retained by the Defendant, City of New York.

108. That the acts complained of herein resulted from the Defendants City of New York, and the New York City Police Department, through their agents, servants and employees, breaching its duty to properly assign, train, supervise, discipline and retained its employees within the New York City Police Department.

109. That the City of New York failed to train, supervise, or discipline the municipal Defendants named herein who unlawfully breached their duty owed to Plaintiff under the special relationship they formed with the Plaintiff under the circumstances enumerated herein.

110. That the defendant City of New York's failure to properly assign, train, supervise or discipline its Police Department employees including the named Defendants involved in this incident herein, constituted a practice of acquiescence, and a tolerance of ongoing negligent conduct which allowed the Defendants to believe that they could violate plaintiffs' rights with impunity.

111. By reason of the foregoing, the individual Defendants individually, and through defendant's agents, servants and employees, failed, and refused to use such care in the performance of their duties as a reasonably prudent police officer would have used under similar circumstances, thus resulting in significant emotional injuries to the plaintiff including his loss of liberty and permanent emotional distress.

112. That the City of New York should be held liable for the underlying violations committed by non-policy makers employees due to the fact that the City's policy and customs of inaction is objectively deliberately indifferent to the likelihood that a constitutional violation would occur.

113. That there existed an obvious need for additional training and supervision based on the officers duties under the doctrine of creating a special relationship to members of the public in which they are known to encounter which the City was aware of and failed to provide.

114. That by the conduct of the Defendants, as described herein, the City of New York is liable to the Plaintiff for their negligent actions in their breach of the duty to provide adequate police protection to Plaintiff for which a special relationship was formed under color of state law.

115. That the failure of the City of New York, and the New York City Police Department and Commissioner James O'Neil to adequately train, supervise or discipline or in any other way control the behavior of the municipal defendants identified herein in the exercise of their official functions, and their failure to enforce the laws of the State of New York, and the regulations of the City of

New York Police Department is evidence of the reckless lack of cautious disregard for the rights of the Plaintiff, Brian Tucker.

116. That such conduct, or lack thereof exhibited a lack of the degree of due care which a reasonable and prudent individual would have shown in executing the duties of the Commissioner of the New York City Police Department.

117. That the need for more or better supervision, or training in creating a special relationship and the duties to protect those who depend on the protection of the New York City Police Department was patently obvious which the City of New York failed to provide.

118. As consequence thereof, Plaintiff has been greatly injured.

FOURTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF AGAINST DEFENDANTS FOR THE NEGLIGENT
INFLECTION OF EMOTIONAL DISTRESS.

119. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “ 1” through “118”with the same force and effect as though more fully set forth at length herein.

120. That the Defendants, engaged in conduct which resulted in a breach of the duty of care owed to Plaintiff Tucker that resulted direction in emotional harm which the Plaintiff hereby seeks compensation for the negligent infliction of emotional harmed caused by Defendant officers Joseph Vincent and John Doe No. 1.

121. That the Plaintiff’s emotional injuries occurred as a direct result of the breach of the duty owed to Plaintiff created by the special relationship created by the Defendant officers.

122. That Plaintiff’s claim of negligent infliction of emotional stress possesses the element of guarantee of genuineness as set forth under **Ferrara v Galluchio**, 5 NY2d at 21.

123. That the guarantee of genuineness "generally requires that the breach of the duty owed directly to the injured party must have at least endangered the plaintiff's physical safety or caused the plaintiff to fear for his or her own physical safety" (1-2 Warren's Negligence in New York Courts § 2.04[1][a]; accord Kennedy v McKesson Co., 58 NY2d 500; Third Restatement § 47[a]).

124. That the Defendant's breach of their duty of care owed to Mr. Tucker to provide police protection under the circumstances involving the creation of a special relationship by the Defendant officers to the Plaintiff as set forth herein and that such breach of the duty owed directly to Plaintiff as the injured party endangered and did in fact result in physical injuries to Plaintiff Brian Tucker.

125. As a consequence thereof, Plaintiff has been injured.

FIFTH CAUSE OF ACTION
AGAINST THE CITY OF NEW YORK FOR RESPONDEAT SUPERIOR.

126. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered " 1" through "125" with the same force and effect as though more fully set forth at length herein.

127. That at all relevant times the Defendants acted under pretense of color of state law and are acts were without authority of law in abuse of its powers.

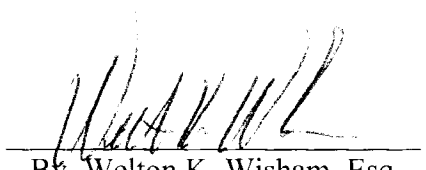
128. That the conduct of the Defendants occurred while they were on duty during the course and scope of their duties and functions as New York City Police Department employees as agents and employees of the Defendant City of New York.

129. The City of New York is therefore liable to Plaintiff under the common law of Respondeat Superior.

WHEREFORE, the Plaintiff Brian Tucker, demands the following judgment and relief jointly and severally against all the Defendants,

- a. For compensatory damages \$ 500,000.
- b. For punitive damages in the amount of \$ 350,000 for further pain and suffering.
- c. For such other and further relief as this Court may deem appropriate including costs and reasonable attorney fees.

Dated: January 23, 2018.
New York, New York


By, Welton K. Wisham, Esq.
The Law Offices of Welton K. Wisham
43 West 43rd Street, Suite 95
New York, New York 10036-7424
(212) 709-8183
(781) 678-8062
wkwisham@optonline.net